

FREE MOBILE data breach action

[Association], a certified consumer association, seeks €[to be set] to fund a French collective damages action (action de groupe) against FREE MOBILE on behalf of 24,633,469 victims (counted as contracts by the CNIL).

Source decision: CNIL Délibération SAN-2026-001 du 8 janvier 2026

Legal basis: GDPR art. 5-1-e, GDPR art. 32, GDPR art. 34

Status: appeal status not stated in the decision

Platform assessment · 5 strong · 2 medium · 0 weak · 7 red flags · 23 claims checked against the decision: 19 supported, 3 to check, 1 overstated, 0 unsupported · details on page 2

DRAFT FOR LEGAL REVIEW · generated from the CNIL decision · every quote is checked word for word against the decision · values in [brackets] are to be provided

Type of harm

IS THE HARM QUANTIFIED?

☐ Quantified ☐ Quantifiable ☒ To be proven

NATURE

☒ Financial ☒ Non-material ☐ Overcharge ☐ Loss of chance

The decision recognises a risk of financial harm (e.g., fraudulent payments using exposed IBANs) and non-material harm (e.g., distress, fear of identity theft, phishing attempts) for the affected individuals due to the data breach.

« la formation restreinte considère que l'accès non autorisé ou la divulgation des données traitées par la société est de nature à créer un préjudice moral et matériel pour les personnes concernées. » (p. 11) ✓ **verbatim**

Victims

NUMBER CNIL decision

24,633,469

contracts

IDENTIFIABLE?

☒ Yes ☐ Partly ☐ No

« l'attaquant a pu prendre connaissance, des données concernant 24 633 469 contrats » (p. 3) ✓ **verbatim**

CATEGORY

☒ Consumers ☐ Businesses ☐ Retail investors ☐ Employees

☐ Other

Proof of class membership: the breach notification email sent between 24 and 29 October 2024

Subgroups: customers whose IBAN was exposed (convergent customers); customers whose identity, contact, and contractual data were exposed

« a informé les personnes concernées de la survenance de la violation de données, par courriel, de manière échelonnée entre le 24 et le 29 octobre 2024 » (p. 2) ✓ **verbatim** · repaired by code, check support

Defendant

NATURE

☒ Private company ☐ Listed group ☐ Public body

☐ Association or union

SOLVENCY

☐ Low ☐ Medium ☒ Strong

The parent group ILIAD had a revenue of 10.024 billion euros in 2024.

Indicators: revenue €10.0bn (ILIAD, 2024), group ILIAD, insurance [], competent court civil **Assumption**

« En 2024, le chiffre d'affaires de la société ILIAD était de 10,024 milliards d'euros pour un résultat net de 367 millions d'euros. » (p. 2) ✓ **verbatim**

Value of the claim

Total = victims who opt in × compensation per victim **Computed**

Scenario	Opt-ins	€ / victim	Total
Low (0.5%)	123,167	€150	€18.5M
Base (2%)	492,669	€150	€73.9M
High (5%)	1,231,673	€150	€184.8M

FUNDING SOUGHT

€[]M

FUNDER'S SHARE

Assumption

30%

Opt-in rates and € per victim are assumptions (rate based on: iban). Benchmarks: minimum claim of €2-4M in France; investment of about 1/10 of claim value (European Commission study, 2025).

Timeline

Expected duration: [] years · Limitation period ends: [date]

Facts	Source decision	Filing	Judgment on liability	Victims opt in	Compensation paid
Sept.–Oct. 2024	8 Jan. 2026	[target date]	[estimate]	[period]	[estimate]

« Celle-ci a duré du 28 septembre au 22 octobre 2024. » (p. 2) ✓ **verbatim**

FUNDING FRAMEWORK · ART. 16, FRENCH LAW OF 30 APRIL 2025

- ☐ No funder influence over the conduct of the action
- ☐ Funding publicly disclosed
- ☐ Written conflict-of-interest policy
- ☐ Funder has no ties to the defendant

Ticked only by the association.

THE ASSOCIATION

[Name], certified since [date]
Statutory purpose: [link to the action]
Counsel: [law firm]
Contact: [name, role, email]

Platform assessment

Independent check by the platform against the CNIL decision. Cannot be edited by the association. No probability of success is given. Checked 4 Oct. 2026.

The CNIL decision confirms multiple GDPR breaches by Free Mobile, including data retention, security, and notification failures, affecting a very large group with sensitive data. However, actual harm and recoverability remain speculative and must be proven in court.

Fault established	STRONG	The CNIL explicitly found breaches of GDPR Articles 5-1-e, 32, and 34. « manquements aux articles 5-1-e), 32 et 34 du RGPD » (p. 3) ✓ verbatim
Data sensitivity	STRONG	The breach exposed IBANs, identity, contact, and contractual data, which are highly sensitive. « leurs données d'identité, leurs données de contact, leurs données contractuelles et, pour les clients dits convergents, leur IBAN » (p. 3) ✗ not found in decision
Group size	STRONG	The breach affected 24,633,469 contracts, a very large group. « 24 633 469 contrats » (p. 3) ✓ verbatim
Harm evidence	MEDIUM	The decision acknowledges risks of fraud, identity theft, and phishing, but does not confirm actual harm occurred. « exposées à des risques liés à la revente de leurs données à des personnes malveillantes, une usurpation de leur identité, des tentatives d'hameçonnage » (p. 11) ✓ verbatim
Victim notification failure	STRONG	The CNIL found Free Mobile failed to properly inform affected individuals under Article 34. « la société a commis un manquement à l'article 34 du RGPD en ne communiquant pas aux personnes concernées par la violation de données les informations nécessaires » (p. 21) ✓ verbatim · page corrected
Defendant	STRONG	Free Mobile is a private company with strong solvency, part of the ILIAD group. « la société FREE MOBILE » (p. 1) ✓ verbatim
Recoverability	MEDIUM	Recovery scenarios are assumptions; opt-in rates and damages per claim are speculative.

Red flags to check before committing

- ▶ Appeal status: The decision can be appealed before the Conseil d'État within two months of notification.
- ▶ Limitation period: Verify the applicable limitation period for GDPR-based claims in France.
- ▶ Standing of the association: Confirm the association has legal standing to represent the victims under French law.
- ▶ Actual harm: The decision does not confirm actual financial or non-material harm occurred; this must be proven in court.
- ▶ Opt-in rates: The recovery scenarios assume opt-in rates (0.5%, 2%, 5%) which are speculative and may not reflect reality.
- ▶ Damages per claim: The assumed €150 per claim is not verified in the decision and may be challenged.
- ▶ Jurisdiction: Confirm the competent civil court for collective actions in France.

Claims in this brief checked against the decision

19 supported

3 to check

1 overstated

0 unsupported

8 assumptions

The full list of claims with quotes is in the investor view.

Summary of the decision

Délibération SAN-2026-001 du 8 janvier 2026. Plain-language summary; each sentence is followed by the passage of the decision that supports it.

1. The French data protection authority CNIL sanctioned Free Mobile for a personal data breach.

« Délibération de la formation restreinte n° SAN-2026-001 du 8 janvier 2026 prononçant une sanction pécuniaire à l'encontre de la société FREE MOBILE » (p. 1) ✓ **verbatim**

2. An attacker accessed Free Mobile's system between 28 September and 22 October 2024, compromising the confidentiality of subscriber data.

« Celle-ci a duré du 28 septembre au 22 octobre 2024. » (p. 2) ✓ **verbatim** · **trimmed by code, check support**

3. The breach exposed data from 24,633,469 contracts, including identity, contact, contractual data, and IBANs for convergent customers.

« dont 19 460 891 contrats mobiles (FREE MOBILE) et 5 172 577 contrats fixes » (p. 3) ✓ **verbatim** · **trimmed by code, check support**

4. The CNIL found Free Mobile breached Article 5-1-e) of the GDPR by retaining data for longer than necessary.

« la formation restreinte considère qu'en conservant des données pendant des durées excessives la société a commis un manquement à l'article 5-1-e) du RGPD » (p. 6) ✓ **verbatim**

5. The CNIL found Free Mobile breached Article 32 of the GDPR by failing to implement appropriate security measures.

« la formation restreinte considère, qu'au jour du contrôle, la société n'avait pas déployé les moyens suffisants pour être en mesure de détecter les activités suspectes sur son VPN, son réseau interne et son outil de gestion de ses abonnés, ce qui constitue un manquement à l'article 32 du RGPD » (p. 15) ✓ **verbatim**

6. The CNIL found Free Mobile breached Article 34 of the GDPR by not properly informing affected individuals about the breach.

« la formation restreinte considère que la société a commis un manquement à l'article 34 du RGPD en ne communiquant pas aux personnes concernées par la violation de données les informations nécessaires dès le premier niveau d'information » (p. 21) ✓ **verbatim** · **page corrected**

7. Free Mobile notified affected individuals by email between 24 and 29 October 2024 to avoid overloading mail servers.

« elle a informé les personnes concernées de la survenance de la violation de données, par courriel, de manière échelonnée entre le 24 et le 29 octobre 2024 afin de ne pas saturer les serveurs de messagerie » (p. 2) ✓ **verbatim**

8. The CNIL imposed a fine of 27 million euros on Free Mobile for the breaches.

« prononcer à l'encontre de la société FREE MOBILE, une amende administrative d'un montant de 27 000 000 (vingt-sept millions) d'euros au regard des manquements constitués aux articles 5-1-e), 32 et 34 du RGPD » (p. 28) ✓ **verbatim**